

Attorney Performance Battery — Pair 0063

Metadata

Examining Attorney: MS. EASTERLING

Semantic Pair ID: gibson_sp063

Corpus: direct

Model: gpt-oss:20b

Grand Total: 57/140 · range ± 140

Pattern: Leading Uncontrolled

Turn Pair

Question (MS. EASTERLING):

And your opinions in that case were -- were they blaming the plaintiff for the incident? (MR. GRINNAN objection: object to the form, foundation.)

Answer (BENJAMIN GIBSON):

I don't think it was necessarily blaming the plaintiff in that case. I think it was noting that Energy Transfer was not involved in that work. They hired that contractor. They -- this guy was the foreman and had chose the means and method, that was more the theme in that case for -- given the nuances of that specific matter.

Dimension Totals

Strategic: +16/65

Tactical: +4/45

Technical: +45/65

Composure: +14/25

Control: +8/40

Call 1 · Question Construction Quality [+22 / ± 30]

clear and unambiguous [+5] strategic · technical

answer: True · confidence: 1.00

→ The question asks a single, straightforward yes/no query about whether the witness's opinions blamed the plaintiff, leaving no room for multiple interpretations.

scope controlled [+4] tactical · control

answer: True · confidence: 1.00

→ The question is narrowly focused on the act of blaming the plaintiff, preventing scope expansion or deflection.

assumes facts not in evidence [+3] technical

answer: False

→ The question's assumption that the witness had opinions in that case is confirmed by the witness's answer, so no unsupported assumption exists.

compound question [+3] technical

answer: False

→ The question addresses only one factual matter—whether the opinions blamed the plaintiff—so it is not compound.

foundation established [+4] technical

answer: True · confidence: 1.00

→ The witness's reference to "that case" provides the necessary foundation for the question about opinions in that case.

objectionable form [+3] technical

answer: False

→ The question is a straightforward yes/no query and does not violate procedural rules; the objection was to foundation, not form.

Call 2 · Answer Control [+8 / ±15]

answer responsive [+3] tactical · control

answer: True · confidence: 0.90

→ The witness directly addressed whether the opinions blamed the plaintiff, providing a clear answer to the question.

deflection present [+2] tactical · control

answer: False

→ The witness stayed on topic and did not divert from the question.

deflection addressed [—] tactical · control

answer: null

objection valid [—] technical · tactical

answer: null

answer elicited [+3] strategic · control

answer: True · confidence: 0.90

→ The attorney obtained the specific information it sought regarding the nature of the opinions.

Call 3 · Strategic Execution [+5 / ±25]

advances theory [+3] strategic

answer: True · confidence: 0.80

→ The question probes whether the witness blamed the plaintiff, and the answer indicates no blame and points to contractor involvement, aligning with the defense's theory that the plaintiff's claims lack merit.

damages opposition [+3] strategic

answer: True · confidence: 0.80

→ By stating the plaintiff was not blamed and highlighting contractor responsibility, the witness's answer weakens the plaintiff's narrative and undermines their case.

impeachment setup [-2] strategic · tactical

answer: False

→ The question does not establish a foundation for later impeachment; it merely asks about blame without eliciting contradictory statements.

witness credibility challenged [-2] strategic · tactical

answer: False

→ The exchange does not reveal any bias or unreliability; the witness simply clarifies the context.

trial utility [+3] strategic · technical

answer: True · confidence: 0.80

→ The answer provides defense with evidence that the plaintiff was not blamed and that contractor, not Energy Transfer, was responsible, useful for trial.

Call 4 · Technical Proficiency [+12 / ±25]

counsel preparedness [+3] technical · strategic

answer: True · confidence: 0.80

→ The attorney posed a clear, focused question that directly addressed the witness's prior opinions, indicating familiarity with the subject matter and control over the exchange.

leading question appropriate [+4] technical

answer: True · confidence: 0.90

→ In an adversarial setting, the attorney's use of a leading question to elicit the witness's opinion is appropriate and aligns with the strategy of extracting specific admissions.

hearsay avoided [+4] technical

answer: True · confidence: 0.90

→ The question seeks the witness's own opinions, not third-party statements, thereby avoiding the risk of eliciting inadmissible hearsay.

expertise invoked [+4] technical · strategic

answer: True · confidence: 0.90

→ The question prompted the witness to discuss his expert assessment of the prior case, allowing him to frame the answer in terms of his professional judgment.

repair opportunity [-3] tactical · strategic

answer: True · confidence: 0.85

→ The witness used the attorney's question to clarify that the prior opinions did not blame the plaintiff, thereby repairing his stance; the attorney's question created this opening, which is detrimental in an adversarial context.

Call 5 · Delivery Effectiveness [+14 / ±25]

speech fluency [+3] composure · technical

answer: False

→ The question is delivered without filler, false starts, or incomplete sentences; the dash indicates a pause but not a dysfluency.

clear delivery [+3] composure · technical

answer: True · confidence: 0.80

→ The question is straightforward and follows a clear structure, allowing the witness to understand it without confusion.

comportment [+3] composure · technical

answer: True · confidence: 0.80

→ The attorney's conduct is respectful and within the bounds of proper deposition practice, with no abusive or improper language.

emotional valence [+2] composure · strategic

answer: False

→ The question is delivered in a neutral, flat register, which is appropriate for the context and does not hinder the client's interests.

register calibration [+3] composure · tactical

answer: True · confidence: 0.80

→ The attorney uses simple, direct language that matches the witness's moderate complexity, facilitating productive engagement.

Call 6 · Control And Dominance [-4 / ±20]

witness handling [-2] control · tactical

answer: False

→ Ms. Easterling posed a single question and did not follow up or steer the witness back to the point, allowing Gibson to elaborate broadly. The lack of control over the witness's answer flow indicates ineffective handling.

narrative control maintained [-2] control · strategic

answer: False

→ The witness's response drifted to discuss Energy Transfer and contractor details, showing the attorney failed to keep the narrative focused on the original question. Narrative control was not maintained.

commitment solidified [-1] strategic · control

answer: False

→ Gibson offered a tentative statement that the case did not necessarily blame the plaintiff, but the attorney did not pursue a definitive, recordable commitment. No solidified commitment was achieved.

evasion present [+1] control · tactical

answer: False

→ The witness answered the question directly and did not refuse or deflect; the response was responsive and did not exhibit evasion.

evasion addressed [—] control · tactical

answer: null

implicit signaling [—] strategic · tactical

answer: null